



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 15 judgments on Tuesday 9 July 2019 and 83 judgments and / or decisions on Thursday 11 July 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 9 July 2019

[Romeo Castaño v. Belgium \(no. 8351/17\)](#)

The applicants are five Spanish nationals who were born between 1959 and 1964 and live in Spain (Madrid and Santoña).

The case concerns the Belgian authorities' refusal to extradite to Spain a person suspected of shooting the applicants' father, Lieutenant Colonel Ramón Romeo, who was murdered in Bilbao in 1981 by a commando unit claiming to belong to the terrorist organisation ETA.

Relying on Articles 2 (right to life) and 6 (right to a fair hearing) of the European Convention on Human Rights, the applicants allege that the decision of the Belgian authorities not to enforce the European arrest warrants has prevented the Spanish authorities from prosecuting the alleged perpetrator of their father's murder.

[Tim Henrik Bruun Hansen v. Denmark \(no. 51072/15\)](#)

The applicant, Tim Henrik Brun Hansen, is a Danish national who was born in 1965. He is currently serving a sentence at Herstedvester Institution (Denmark).

The case concerns his complaint about the lack of an external medical opinion in a 2015 High Court decision to keep him in Herstedvester Institution, where he has been held since 1997.

Mr Hansen was found guilty in 1996 of deprivation of liberty, attempted rape in particularly aggravating circumstances and abandoning a 10-year-old girl. He was subsequently transferred to Herstedvester Institution.

He has several times requested release or a more lenient sentence. Based on medical reports by Herstedvester Institution experts, the requests were refused owing to a risk of his committing similar crimes unless he agreed to chemical castration, which he refused.

A new request for release was brought before the courts in 2014 and it was again rejected at first instance by the District Court.

Mr Hansen appealed, arguing that an external medical opinion was needed as his case had reached deadlock as the institution was insisting on chemical castration prior to his release but he refused on health grounds. He relied on Article 5 (right to liberty and security) of the European Convention and the Court's case-law in *H.W. v. Germany* and *Ruiz Rivera v. Switzerland*.

The High Court upheld the safe custody measure in January 2015, stating also that the submissions under Article 5 could not lead to a different finding and citing a Supreme Court case on that matter in its conclusions. Proceedings for his release also took place in 2016 and when they went to appeal the High Court sought an external opinion from the Medico-Legal Council. The appeal court subsequently maintained his placement in the institute.

The applicant complains that the High Court's decision of January 2015 to maintain his sentence of safe custody, without hearing an external medical expert, breached his rights under Article 5 § 1 (a) (right to liberty and security) of the Convention.

[Kislov v. Russia \(no. 3598/10\)](#)

The applicant, Vladimir Kislov, is a Belarusian national who was born in 1974. His current whereabouts are not known but he is apparently in Russia.

The case concerns the applicant's complaint about proceedings in Russia to extradite him to Belarus.

A Belarus court convicted Mr Kislov in December 2005 of accepting a bribe in return for making a favourable decision in his role as an employee at the Minsk district office of a State affiliated enterprise and he was sentenced to seven years in a strict-regime prison. He alleges that the proceedings were brought against him in retaliation for denouncing his superior at the company for various corrupt activities and that the case was fabricated.

The applicant arrived in Russia in March 2005. He states that he left Belarus owing to persecution and harassment by the domestic authorities.

He was arrested in Russia in July 2009 and in October 2009 the Prosecutor General's Office approved his extradition to Belarus. He appealed, arguing in particular that the Russian authorities had not assessed whether extradition had to be refused as being based on the enforcement of a sentence which had been imposed without the minimum guarantees of a fair trial.

His lawyer submitted at a hearing that he could face the kind of ill-treatment prohibited by Article 3 of the Convention. The Russian courts upheld the extradition order. The applicant went into hiding but as of March 2016 he was apparently still in Russia.

The Belarus courts reduced his sentence in July 2010 to four years under legislative changes that had occurred subsequently. Requests to the Belarus Supreme Court for further reviews were dismissed.

Relying on Article 3 (prohibition of torture and inhuman or degrading treatment) of the European Convention, the applicant complains of a risk of ill-treatment if extradited to Belarus.

He also raises various complaints under Article 5 (right to liberty and security) about his detention in Russia pending extradition from 16 August to 13 November 2009.

He further alleges that his conviction in Belarus came after proceedings that were a flagrant denial of justice and so his extradition to that country would violate Article 6 (right to a fair trial). He lastly alleges a breach of Article 13 (right to an effective remedy) in relation to his other complaints.

[Volodina v. Russia \(no. 41261/17\)](#)

The applicant, previously known as Valeriya Igorevna Volodina, is a Russian national who was born in 1985 and lives in Ulyanovsk (Russia). She changed her name in 2018, and her new name is not disclosed for security reasons. The case concerns her complaint about repeated domestic violence.

Ms Volodina started a relationship with S. in 2014 and they lived together in Ulyanovsk. When she moved out in May 2015, he became abusive and threatened to kill her if she refused to go back to live with him.

Between January 2016 and March 2018 she reported seven episodes of serious violence or threats of violence by her former partner, making emergency calls to the police or lodging formal criminal complaints. Each time she went to the police or the hospital, injuries including bruising and abrasions were recorded.

In particular, in the first half of 2016 she reported repeated physical attacks, kidnapping and assault, and then in March 2018 a series of stalking incidents and death threats. One of the assaults, involving S. punching her in the face and stomach when she was pregnant, resulted in her having to

undergo an abortion. Other incidents included S. cutting the brake hose of her car and stealing her bag with her identity papers and two mobile telephones.

She made repeated attempts to move away, seeking refuge in Moscow. Although she had not left S. with her new address, in January 2016 he tracked her down via her CV which she had published on job-hunting websites, set up a false interview and took her back to Ulyanovsk against her will. On another occasion, in September 2016, she found a GPS tracker in the lining of her bag. He subsequently started stalking her outside her house, and attempted to kidnap her again by dragging her out of a taxi.

No criminal investigation was ever opened into the use or threat of violence against her. A series of pre-investigation enquiries were carried out, and the police interviewed S. However, they refused to institute criminal proceedings because no publicly prosecutable offence had been committed. S. was told to repair any damage he had caused and to return Ms Volodina's personal effects.

In March 2018 the police began a criminal investigation into interference with Ms Volodina's private life after S. shared photographs of her on a social network without her consent. The proceedings allowed the applicant to apply for State protection measures but she has not received any formal decision on her request. The regional police considered that State intervention was not necessary as the domestic violence was due to "ill feelings" between the applicant and S.

Ms Volodina alleges that the Russian authorities failed to prevent, investigate and prosecute repeated acts of domestic violence against her and to put in place a legal framework to combat gender-based discrimination against women. She relies on Article 3 (prohibition of inhuman or degrading treatment), Article 13 (right to an effective remedy) and Article 14 (prohibition of discrimination).

[Gülkanat v. Turkey \(no. 38176/08\)](#)

The applicant, Aşur Gülkanat, is a Turkish national who was born in 1961 and lives in Istanbul (Turkey).

The case concerns allegations of ill-treatment by police officers.

On 9 August 1999, at around 10 a.m., three police officers came to Mr Gülkanat's home and asked him to accompany them to the police station. According to Mr Gülkanat, the officers stopped the car in a wooded area and one of them insulted him, accusing Mr Gülkanat of harassing his sister-in-law. The three police officers then beat him before taking him to the police station.

When he arrived at the police station, Mr Gülkanat reportedly complained to the senior officer in charge that he had been beaten and asked him to arrange a medical examination. The officer refused his request. Mr Gülkanat was released at around midday, without any record being made of his time at the police station. He subsequently went to the public prosecutor's office to submit a criminal complaint and underwent a medical examination. The doctor certified him unfit to work for five days, noting that he had physical injuries. A few days later the public prosecutor charged the three officers with abuse of power and ill-treatment and charged the senior officer with professional misconduct.

In February 2001 the police officers were sentenced to three months' imprisonment, converted into a suspended fine. However, the judgment was quashed by the Court of Cassation. In July 2003 the police officers were again convicted by the District Court, and the Court of Cassation again quashed the judgment. In March 2006 they were convicted for a third time, but in April 2008 the Court of Cassation held that the proceedings were statute-barred.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr Gülkanat complains of his ill-treatment by the police officers and of the length of the proceedings brought against them for

ill-treatment. He alleges, in particular, that the officers enjoyed complete immunity owing to the application of the statute of limitations.

[Selahattin Demirtaş v. Turkey \(no. 3\) \(no. 8732/11\)](#)

The applicant, Selahattin Demirtaş, is a Turkish national who was born in 1973 and was living in Diyarbakır at the time the application was lodged. The case concerns his criminal conviction for statements made during a television broadcast.

On 20 December 2005 the Diyarbakır public prosecutor charged Mr Demirtaş with disseminating propaganda in favour of a terrorist organisation, following comments he made by telephone, during a television programme, in his capacity as President of the Human Rights Association and spokesman of the Diyarbakır Democratic Platform.

On 28 September 2010 the Diyarbakır 5th Assize Court found Mr Demirtaş guilty and sentenced him to 10 months' imprisonment, before deciding to suspend delivery of its judgment for five years under Article 231 of the Code of Criminal Procedure. The Assize Court found that the comments in question were not covered by the right to freedom of expression protected by the Convention, that they amounted to propaganda in favour of the terrorist organisation PKK/Kongra-Gel and that they publicly defended its imprisoned leader, Öcalan, and its members. The Assize Court dismissed Mr Demirtaş's objection against its decision to suspend delivery of the judgment.

On 29 July 2013 the Diyarbakır 5th Assize Court, taking note of the entry into force of Law no. 6352, decided to annul its judgment of 28 September 2010 and to suspend the proceedings against the applicant for three years.

Relying on Articles 9 (right to freedom of thought) and 10 (freedom of expression), the applicant alleges that the criminal proceedings against him infringed his rights under those provisions of the Convention.

Thursday 11 July 2019

[Abdalov and Others v. Azerbaijan \(nos. 28508/11, 37602/11, and 43776/11\)](#)

The applicants, Ikhtiyar Alish oglu Abdalov, Ibrahim Zabit oglu Ahmadzade, and Tariel Adishirin oglu Shirinli, are three Azerbaijani nationals who were born in 1964, 1975, and 1955 and live in Baku, Sumgayit, and Imishli (all in Azerbaijan) respectively.

The case concerns their complaint about being prevented from registering as candidates for November 2010 parliamentary elections in time to allow them to campaign and compete effectively.

The three applicants planned to stand in 7 November 2010 parliamentary elections in single-mandate constituencies. However, their constituency electoral commissions found that many of the signatures they had collected to support their nominations were invalid and that they had not reached the necessary threshold of 450.

The applicants challenged those decisions before the Central Electoral Commission, the appeal court and the Supreme Court, arguing that the findings of the constituency electoral commissions were incorrect and in breach of the procedural safeguards afforded to them by law. During the proceedings, on 15 October 2010, official campaigning for the election began.

The applicants' appeals were eventually upheld and the domestic courts ordered the electoral commissions to register them as candidates. The first applicant received his candidate registration card on 4 November, the second on 2 November and the third on 5 November 2010, the last full day of campaigning. Owing to their late registration, the applicants asked for the ballots in their constituencies to be postponed, but they were refused. They were not elected.

All three complained to the electoral authorities and the courts about their delayed registration and that they had not been able to compete on an equal footing with other candidates. They also requested that the election results in their constituencies be declared invalid. The electoral authorities and the courts dismissed their complaints.

In August 2014 the authorities began criminal proceedings against the second and third applicants' lawyer, Mr I. Aliyev, raiding his office and seizing files related to clients who had complained to the Court. Some files were returned in October 2014, including those of the second and third applicants.

Relying on Article 3 of Protocol No. 1 (right to free elections) to the Convention the applicants complain that arbitrary decisions initially refusing to register them as candidates and the subsequent delayed registrations after a number of appeals meant they were unable to take part in the elections under the same conditions as other candidates owing to the very short time left to campaign. They also allege a breach of Article 13 (right to an effective remedy) in relation to their first complaint.

Mr Aliyev also complains on behalf of the second and third applicants of a violation of Article 34 (right of individual petition).

[Škrlić v. Croatia \(no. 32953/13\)](#)

The applicant, Matko Škrlić, is a Croatian national who was born in 1991 and lives in Rijeka (Croatia).

The case concerns his complaint that the judge who fined him in minor-offence proceedings lacked impartiality.

In February 2012 Mr Škrlić was issued with a police penalty notice for two minor road traffic offences: failure to stop his vehicle to let a pedestrian cross a pedestrian crossing and not wearing a seat belt. He challenged the penalty notice before the Pazin Minor Offences Court, where Judge B.L.V. set it aside and ordered summary minor-offence proceedings.

The applicant states that his lawyer sent a fax in late June to the court to ask that Judge B.L.V. be removed from the case: he had worked with the applicant's mother and to remove any doubts about impartiality he should be taken off the case. The Government states that the court did not receive such a fax.

Judge B.L.V. found against Mr Škrlić, with neither he nor his lawyer attending the court hearing. He was fined approximately 130 euros. Mr Škrlić appealed to the Constitutional Court, stating that in another set of minor-offence proceedings the judge had agreed to recuse himself owing to animosity between him and the applicant's mother when they had worked together earlier.

Relying on Article 6 § 1 (right to a fair hearing), the applicant complains that he was not tried by an impartial tribunal owing to Judge B.L.V.'s involvement in the minor-offence proceedings against him.

[Olivieri v. France \(no. 62313/12\)](#)

[Bloise v. France \(no. 30828/13\)](#)

These two cases concern the failure to notify the applicants of their right to remain silent, and the lack of assistance by a lawyer while they were in police custody. The law in force at the relevant time made no provision for persons in police custody to be notified of their right to remain silent or for them to be assisted by a lawyer during questioning.

The applicant in the first case, Mr Noël Olivieri, is a French national who was born in 1950 and lives in Ajaccio. On 2 August 2004 and 30 May 2005 a commercial court ordered the judicial organisation and winding-up of the company Les Bâisseurs Corses, of which Mr Olivieri was the manager. The public prosecutor opened an investigation into criminal bankruptcy relating to the company. Mr Olivieri was taken into police custody on 27 November 2007 at 10 a.m. He was informed of his rights, and in particular of the right to speak with his lawyer for thirty minutes away from the interview room. After around ten hours of questioning he admitted criminal responsibility. The

interviews and police custody were terminated at 9 p.m. the same day. Mr Olivieri was summoned to appear before the Criminal Court on a charge of criminal bankruptcy. He requested in writing that the summons, his police custody and the subsequent proceedings be declared null and void. On 28 May 2010 the court ruled that his plea of nullity was well founded and set aside the summons. The public prosecutor appealed against that judgment. On 30 May 2011 the Court of Appeal upheld the nullity of the summons only in relation to the offence of criminal bankruptcy through concealment of assets in respect of part of the facts. For the remainder, it found Mr Olivieri guilty and sentenced him to a suspended term of one month's imprisonment and to a fine of 1,000 euros (EUR). The Court of Cassation dismissed an appeal on points of law by the applicant on 21 March 2012 on the grounds that, in finding him guilty, the court had not based its decision solely or mainly on his statements in police custody.

The applicant in the second case, Mr Auguste Bloise, is a French national who was born in 1938 and lives in Punaauia (French Polynesia). On 19 February 2007, at 2 p.m., he was taken into police custody in connection with the misappropriation of corporate assets in his capacity as the chairman and managing director of company S. He was placed under formal investigation on 12 April 2007. In the proceedings before the Criminal Court Mr Bloise requested that his police custody be declared null and void. On 2 November 2010 the Criminal Court held that the applicant was no longer entitled to contest his police custody as the deadline for doing so had expired. It found Mr Bloise guilty of misappropriation of corporate assets and sentenced him to two years' imprisonment and to a fine equivalent to around EUR 33,500. On 9 November 2010 the Criminal Court ordered Mr Bloise to pay damages to the company, which had been a civil party. Mr Bloise appealed against both those judgments. On 27 October 2011 the Court of Appeal dismissed the pleas of nullity made by Mr Bloise and upheld the rulings in a judgment giving detailed reasons. On 7 November 2012 the Court of Cassation dismissed an appeal on points of law by Mr Bloise, finding that the Court of Appeal had not based its ruling solely or mainly on the statements made by the applicant in police custody.

Relying on Article 6 § 1 (right to a fair trial) and 6 § 3 (c) (right to be assisted by a lawyer), the applicants in each of these cases allege a violation of the Convention in that their criminal conviction was based on the confessions they made while in police custody, during which time they were not notified of their right to remain silent and did not have the effective assistance of a lawyer.

[Dardanskis and Others v. Lithuania \(no. 74452/13 and 15 other applications\)](#)

The applicants are 16 Lithuanian nationals born between 1960 and 1980. They have all been sentenced to life imprisonment and are serving their sentences either in Lukiškės Prison or in Pravieniškės Correctional Institution (Lithuania).

The case concerns the applicants' complaint that their imprisonment for life amounts to inhuman and degrading treatment as they have no hope of release.

In March 2019 legislative changes regarding life prisoners were made to Lithuanian law, allowing a life sentence to be changed to a fixed-term sentence and the prisoner concerned to be released on parole. The legislation also sets out the procedure to be used in order to amend sentences, as well as the criteria that a life prisoner has to meet in order to qualify.

All the applicants complain that, at the time they brought their applications, Lithuanian law had not been amended to bring it in line with the European Court's case-law on life-imprisonment. They rely on Article 3 (prohibition of inhuman or degrading treatment).

[Sadocha v. Ukraine \(no. 77508/11\)](#)

The applicant, Vasil Sadocha, is a Czech national who was born in 1972 and lives in Olomouc, the Czech Republic.

The case concerns his complaint about customs officials seizing 31,000 euros in cash from him at Kyiv Zhuliany Airport.

In July 2011 Mr Sadocha was travelling from Ukraine to Poland carrying 41,000 euros (EUR). His hand luggage was X-rayed and he was asked if he was carrying any cash, after which he showed the money to the customs officer. He was charged with breaches of the customs code for failing to declare the full amount of the cash and EUR 31,000 was seized on the spot.

A court heard the case in August of the same year. The applicant's lawyer accepted that he had not declared the money, however, he had not known that he had to declare it. He also submitted that the 31,000 euros had come from a private loan and provided the relevant loan agreement. The court nevertheless issued a confiscation order, holding that the origin of the money had no relevance for the scope of the applicant's liability.

On appeal, the applicant's lawyer argued that the lower court had imposed an unfair and disproportionate punishment and had failed to properly examine grounds for a less severe sanction, such as the lawful origin of the money and the lack of an intention to commit an offence. The appeal court upheld the first-instance judgment.

Relying on Article 1 of Protocol No. 1 (protection of property) to the Convention, the applicant complains that the authorities' decision to seize his money was unlawful, excessive and disproportionate. He also raises a complaint under Article 6 § 1 (right to a fair hearing) about being absent from the administrative offences proceedings.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 9 July 2019

Name	Main application number
Atyukov v. Russia	74467/10
Borisov v. Russia	48105/17
Kalinichenko v. Russia	40834/11
Kostyuchenko v. Russia	6991/07
Olkhovskiy v. Russia	53716/17
R.A. v. Russia	2592/17
Romanov v. Russia	76594/11
Rozhkani v. Russia	14918/14
Vakhitov v. Russia	42932/11

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Name	Main application number
Kiviryan v. Armenia	13343/15
Matondo v. Belgium	47142/18
Som and Others v. Belgium	49358/11
Argirov v. Bulgaria	30016/18
Dyankov v. Bulgaria	28706/12
Yankov v. Bulgaria	44768/10

Name	Main application number
Yordanova and Others v. Bulgaria	61432/11
Kramer v. Croatia	58767/15
Ljubas v. Croatia	4101/14
Martins v. France	62365/16
O. and Others v. France	51181/18
Zakaradze v. Georgia	71880/12
Charitidis v. Greece	51865/12
Diamantopoulos v. Greece	33441/18
Giannousis N.T. & Kliafas Brothers S.A. v. Greece	60338/15
Kapniki Michailidis SA v. Greece	60936/12
M.G. v. Greece	37062/14
Albrecht and Sztergár v. Hungary	29794/17
Fülöp v. Hungary	20792/17
Gála and Others v. Hungary	31845/18
Hegyi and Zsolnai v. Hungary	76198/14
Hunvald v. Hungary	40934/15
Iván v. Hungary	69116/16
Kolompár and Others v. Hungary	49600/14
Püski and Others v. Hungary	39211/13
Tóth and Others v. Hungary	59840/17
Uliano v. Italy	40097/13
Valia and Others v. Italy	16320/14
Doo Vio-Mark-in Insolvency v. North Macedonia	50520/15
Kumpiałowska and Others v. Poland	45501/08
Kuźmich v. Poland	8127/17
Madejska v. Poland	2738/14
Nowak v. Poland	4329/14
Nyc v. Poland	4435/14
Olewińscy v. Poland	34418/18
Orłowski v. Poland	60537/15
Polackiewicz and Others v. Poland	15404/15
Ryfczyński v. Poland	4003/18
Sobolewski v. Poland	8734/13
Wawrzelski v. Poland	20029/18
Barabaş and Others v. Romania	42239/15
Bartic v. Romania	21437/15
Carabulea and Others v. Romania	21287/15
Corduneanu and Others v. Romania	42989/15
Covaciu v. Romania	15360/16
Dăbuleanu and Others v. Romania	5745/16
Jankowiak v. Romania	17349/15
Kulik v. Romania	46507/16
Petcovici and Others v. Romania	1443/16
Socaci v. Romania	19430/16
Vâlceanu v. Romania	77441/12

Name	Main application number
Viorel Lingurar and Others v. Romania	33433/15
Ashovskiy and Others v. Russia	10496/18
Berestnev and Others v. Russia	255/18
Gubarev and Serdyukov v. Russia	42334/06
Lyamin v. Russia	9966/11
Murodov and Konorev v. Russia	4092/13
Nayfonova and Others v. Russia	6942/18
P.O. v. Russia	52516/13
Pastukhova-Glebova and Glebova v. Russia	31068/12
Pekar and Others v. Russia	47095/17
Smetanin and Others v. Russia	72048/17
Tsivilev and Others v. Russia	54198/17
Varyanitsa and Others v. Russia	11959/04
Vasilyev and Derebarya v. Russia	8337/18
Zhurba v. Russia	7689/11
Brkić v. Serbia	30670/15
Mazinjanin v. Serbia	20178/15
Puškić v. Serbia	38133/16
Zambojová and Prestová v. Slovakia	57944/18
Balakirev and Others v. Ukraine	61109/10
Dolgikh v. Ukraine	34697/04
Korostylyov v. Ukraine	37790/18
Petrov and Korostylyov v. Ukraine	19591/18
Radyukin v. Ukraine	27805/18
Sarabash v. Ukraine	24366/11
Serzhantov v. Ukraine	57240/14

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.